

Court No. - 37

Case :- WRIT - C No. - 32104 of 2013

Petitioner :- M/S Shree Bhawani Mills

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- Shivam Yadav, A.N. Singh

Hon'ble Sheo Kumar Singh, J.

Hon'ble Brijesh Kumar Srivastava-II, J.

Connect with Writ Petition No.30582 of 2009, M/s Vehina Steels & Alloys Pvt. Ltd. & Anr. Vs. Paschimanchal Vidyut Vitran Nigam Ltd. & Anr. and other similar matters by which the demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 has been challenged.

Shri Shivam Yadav, learned counsel appearing for the respondent Nos.1 and 2 and Shri A.N. Singh appearing for respondent No.3 submits that several writ petitions are pending on the same issue, and are going to be listed for hearing.

Learned counsel for the respondents are allowed three weeks' time to file counter affidavit.

In view of the interim order, as already granted in Writ Petition No.30582 of 2009, it is provided that, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 31.5.2013

Shahid

Court No. - 21

Case :- WRIT - C No. - 32104 of 2013

Petitioner :- M/S Shree Bhawani Mills

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- Shivam Yadav, A.N. Singh, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

On the request of the learned counsel for the petitioner, the matter is adjourned.

When the matter is listed on the next date, name of Shri Ajay Singh shall be shown as learned counsel for the respondent.

List on 28.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 32104 of 2013

Petitioner :- M/S Shree Bhawani Mills

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- Shivam Yadav, A.N. Singh, Ajai Singh, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed by learned counsel for the petitioner adjourned to
2/5/2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.4.2023

skv

Court No. - 21

Case :- WRIT - C No. - 32104 of 2013

Petitioner :- M/S Shree Bhawani Mills

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mayank Agrawal, Ankit Gaur

Counsel for Respondent :- Shivam Yadav, A.N. Singh, Ajai Singh, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The challenge advanced is to the demand notice dated 08.05.2013 issued by U.P. Electricity Regulatory Commission imposing additional security on industrial consumers having load of more than 45 kilowatt and the bill issued to the petitioner applying the said tariff.

Sri Mayank Agrawal, learned counsel for the petitioner very fairly states that the issue stands decided against the petitioner by this Court in the case of **M/S Dev Prayag Paper Mill (Pvt.) vs State Of U.P. and 3 others** reported in **2017 (3) ALJ 497**.

Accordingly and for the reasons given in the said judgement, the instant petition is also dismissed.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.5.2023

Jaswant